HAVELLIN PALM BEACH

Estate and Trust Settlement

A reference for estate counsel, trustees and fiduciaries

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1. Who We Are

Havellin Palm Beach is a white-glove estate transition firm serving Palm Beach County, and a member of NASMM, the National Association of Senior and Specialty Move Managers. We settle the contents of estates and trusts, and provide home cleanouts, downsizing and move management, and home preparation.

Every engagement runs on two roles. The **Transition Concierge** is the senior lead: on site for the whole project, your single point of contact, and the keeper of the record. **Property Specialists** do the hands-on work under the concierge's direction. Counsel and trust officers deal with the concierge.

The principals, Anthony Graziano and Ashley Jerome, are licensed Florida real estate agents with backgrounds in investment banking and luxury client service, and both hold the Seniors Real Estate Specialist (SRES) designation. Section 8 discloses the brokerage relationship.

2. The Standard We Work To

A personal representative and a trustee carry the same exposure: each must be able to show what they held, what it was worth and where it went. Our record is built so they can.

Probate. Under Fla. Stat. §733.604 the personal representative files a verified inventory within 60 days of Letters, listing the estate's property in reasonable detail with each item's estimated fair market value at the date of death. It is amended if property surfaces later or a value proves wrong, and a beneficiary may ask in writing how any value was determined. For the tangible personal property we prepare the **Court Inventory**, for the representative to adopt and counsel to serve and file. We never file anything with the court.

Trust. The trustee must keep the qualified beneficiaries reasonably informed and account to them (§§736.0813 and 736.08135). No inventory is filed with a court, but the accounting must show the same things. We prepare the **Trust Schedule**: the tangible personal property the trust holds, at fair market value at the date of death. It supports the trustee's accounting; it is not one.

Pour-over and family matters. Where a pour-over will sends probate assets into a trust, we prepare both. Where there is neither a court nor a trust, the inventory and the Disposition Ledger are the record.

Our role is narrow on purpose. We document, coordinate and carry out. The fiduciary decides, counsel advises and credentialed appraisers appraise. We never read or interpret the will or the trust instrument: the list of items designated to particular people comes from you or from counsel. We take direction from the personal representative or trustee alone. Family and beneficiaries are welcome at the property, but nothing is released on anyone else's word.

3. Before Any Work Begins

A walkthrough and a written estimate. No estimate is issued sight unseen. A principal approves every estimate before it goes out, and it becomes Exhibit A to the engagement agreement.

The agreement. The personal representative or trustee signs, and so does each co-representative or co-trustee, through DocuSign, on paper or in person on our iPad. A signed copy goes to you.

Authority. A certified copy of the Letters on a probate matter, or the successor trustee's Certification of Trust (§736.1017) on a trust, with any limits on that authority noted in writing. No work begins until the agreement is signed, the deposit is received and the authority paper is on file. We open a direct channel with counsel at the start.

Secured first. Jewelry, cash, negotiable instruments and original legal documents are secured with you, counsel or a bank at the walkthrough, before work begins.

Documentation scope. Chosen at intake and written into the agreement:

Scope	What Havellin produces	What counsel does
Contents list	Every item of consequence photographed, described, located and graded for condition. No values.	Values it, arranges any appraisal and prepares the filing
Inventory with values	The contents list, plus an estimated fair market value for each item with its basis stated	Arranges any appraisal and prepares the filing
Inventory + appraisals	The valued inventory, with specialist appraisers engaged and scheduled by us and their reports attached	Prepares the filing
None	Sorting, staging and set-aside against counsel's own schedule. No inventory.	The whole inventory and the filing

Timing. Exhibit A dates the work. On a probate matter it is planned to deliver the inventory to counsel in time for the 60-day filing. Where a federal estate tax return is due, we track its nine-month date as well.

4. How the Property Is Documented

Photographs. Every room is photographed as found, before anything in it is moved. Every item, or group of like items, is photographed on its own, with close-ups of marks, signatures, labels and damage. Each room is photographed again once it is cleared.

Each item. Every item carries a permanent number (never reused; any gap in the numbering is explained on the paper), its room, description, quantity, condition and destination, and where the scope includes values, its value, valuation date and the basis for that figure. On every paper, each item number links to its photograph.

Values. Our values are estimates, never appraisals. Each states its basis on the line: a named sale, a count of current listings, the going rate for that kind of thing, or the reason our staff gave for a figure they set. A figure is called an appraisal only where an appraiser's report is noted against it. Fair market value at the date of death is the standard unless counsel directs otherwise, and the §2032 alternate valuation date is applied where it has been elected.

AI-assisted research. We use AI software to identify items from their photographs and to research their value against public sale records and current listings. It decides nothing. Every figure shows the evidence it rests on, anything uncertain is flagged for a person, and Havellin reads the whole list before any paper is marked reviewed.

Appraisals. We flag for appraisal any item we estimate at $3,000 or more, in any category ($500 on a disputed estate), and anything of a specialist kind we cannot value with confidence. The Appraisal Worklist groups them by specialist and shows the appraiser engaged for each and where each stands. We do not perform appraisals.

Whether we or counsel engage the appraisers depends on the scope above; either way we give the appraiser access and are present for the visit.

Federal estate tax. Where a Form 706 is due, every article worth more than $100 is listed on its own as Treas. Reg. §20.2031-6(a) requires, and the $3,000 aggregate for articles of artistic or intrinsic value under §20.2031-6(b) is tracked, so counsel knows when an expert appraisal must be filed with the return.

Property outside the estate. Each item carries its track as you or counsel direct: probate, exempt under §732.402, homestead, non-probate or trust. Exempt property is listed with its own subtotal and the §732.402 cap test, and property outside the probate estate is listed separately from it.

No paper claims more than it is. A schedule with an item not yet valued, or a possible duplicate not yet resolved, prints as DRAFT, states its total as recorded so far and names the gaps. Each paper also says whether Havellin has read the whole list through, and once it has, names the reader and the date.

Found in the house. An original will or codicil is handed unopened to the estate attorney the same day, against a signed receipt, for deposit with the clerk within the ten days §732.901 allows. Cash is counted by two people, sealed in a numbered bag and signed for by the fiduciary the same day. Deeds, titles and financial records go to you and counsel against a signed receipt.

Firearms. Photographed where found and not moved without written authority. A firearm leaves only through a licensed dealer, whether it is sold or going to a named person, and nobody else carries one out, family included. Items regulated under the National Firearms Act are never transported by us. Havellin never buys a firearm and takes nothing from its sale.

5. Nothing Leaves Without Written Approval

The release approval request. Before anything leaves, the items ready to go are listed for your written approval, grouped by destination and recipient, each with its value and basis where the scope states values. Items valued at $500 or more, specific bequests and anything carrying a caution are initialled one by one; the rest are initialled by group. Every personal representative or trustee signs, through DocuSign or on paper. Nothing on the list is moved, sold, donated or disposed of until it is signed.

An approval covers what it says. If an item's destination or recipient changes after you sign, or its value crosses $500 or the appraisal threshold or rises more than 25%, it comes back to you on the next request.

Disagreement. Where beneficiaries disagree about an item, it is held until you instruct us in writing. We do not arbitrate.

Signed for as it leaves. Whoever takes property away (a selling vendor, a charity, a beneficiary, an appraiser) signs for it on our iPad, and the signed sheet is filed to the estate's folder. Every item released to a beneficiary is receipted, a firearm is receipted by its dealer, and each charity's donations are listed on a Donation Record with its receipt.

Chain of custody. On probate and trust matters every hand-off is logged with its date, the parties and who recorded it. Keys, fobs and access codes are logged in and out the same way, codes are cleared when the job closes, and the job cannot close while a key is still out.

Proceeds. The selling vendor pays the estate or the trust directly. Havellin never receives or holds proceeds. Each vendor statement is reconciled to the cent against the items it covers.

Incidents. Anything that goes wrong is reported the same day. If property is damaged you are told within 24 hours, a written report goes to Anthony Graziano within 24 hours, and above $500 the insurance carrier is engaged and its contact given to you within 48 hours.

The Disposition Ledger. The record of where every item went: who authorized it, who received it, when, and on a sale the gross, the fees and the net. Available at any point, marked in progress, and signed by every fiduciary at close.

6. What You Receive

At engagement

- The estimate (Exhibit A) and the executed agreement.
- Certificates of insurance, Havellin's and each vendor's, on request.

During the work

- Read-only access, on request, to the as-found and item photograph folders, with the inventory spreadsheet kept current beside them.
- Release approval requests as items become ready to leave.
- The inventory, the Disposition Ledger or the Appraisal Worklist at any point, marked in progress.

At close

The documentation package goes to counsel directly: the estate attorney on a probate matter, the trustee's attorney (or the trustee) on a trust, with the representative copied.

- **Court Inventory (§733.604)** on a probate matter, **Trust Schedule** on a trust: the tangible personal property, scheduled for adoption or receipt.
- **Estate Inventory Report** (the Contents List where no values are in scope): every item with its photograph, value and destination.
- **Disposition Ledger**, signed.
- **Appraisal Worklist**, with the filed appraisal reports linked.
- **Release Approvals and Chain of Custody**: who approved each item and when, and every custody event.
- **Incident Record**, where anything was reported.
- Links to the photograph folders.

Filed in the estate's folder beside it: every signed approval, receipt and pickup sheet, charity receipts, vendor proceeds statements and the Key and Access Custody Record.

The final invoice. On a fixed fee it closes the agreed fee, with any change orders itemized against it. On hourly billing it is built from the hours logged, in half-hour increments, and reconciled against the estimate.

Retention. The Project Records (the photographs, the inventory and the record of disposition) are kept for seven years from close and provided on request to the representative or trustee, to counsel, and to anyone they authorize in writing.

7. Fees

- **No commission, no percentage.** Havellin never charges a commission or a percentage of sales, auction results or estate value.
- **Fixed fee or hourly.** Estates are usually quoted at a fixed fee for the scope in Exhibit A, which does not move with the hours worked. Hourly engagements bill the hours logged at the rates in the agreement. We log hours on every job either way.

- **Payment.** 50% on signing, 25% at the midpoint and the balance after the final walk-through, due within seven days. The deposit is earned on signature and is not refundable. ACH, wire or check; we do not take cards.
- **Changes.** A fixed fee changes only by a change order signed by both sides. On hourly billing we obtain your written approval before the hours run more than 15% over the estimate, and added work needs a signed change order.
- **Vendors.** Every vendor invoices the estate directly at its own price, or, if it sells, takes its commission from the proceeds. Havellin adds no markup and never pays a vendor and rebills. Where the estimate includes preparation trades that we manage (repairs, painting), a Home Preparation Fee of 30% of their quotes applies, stated on the estimate. Moving and packing materials are a fixed package price.

8. Independence and Disclosures

Nothing is bought. Havellin, its owners, team members and contractors never buy or receive any property of the estate or the trust, directly or through anyone else, and take no part of the proceeds of its sale.

Referral fees. A vendor we recommend may pay Havellin a referral fee. It comes out of the vendor's own commission or charges: it is never deducted from your proceeds, never added to the vendor's invoice and never taken on a firearm. The estimate says so on that vendor's line, and the Disposition Ledger names every vendor on the job that pays one. You may engage any vendor you choose.

Real estate. The principals are licensed Florida real estate agents with Douglas Elliman, Palm Beach. If the estate's real property is to be listed, we may have an interest in that listing, and we say so in the first conversation, before any engagement. Brokerage is always a separate agreement. The estate engagement is never conditioned on it, and choosing another agent changes nothing about the estate work or its price.

9. Insurance, Confidentiality and Records

Insurance. Havellin carries general liability; inland marine (bailee's) coverage for property in our care, with an agreed-value schedule for fine art and collectibles; professional liability; commercial auto, including hired and non-owned; umbrella; commercial crime (fidelity) and cyber coverage reaching every team member and contractor on site; and workers' compensation as Florida requires. The certificate, provided on request, states the limits. An item worth more than the per-item limit is scheduled with the insurer or handled by an insured specialist, and we name those items to you before work begins.

Vendors. Every vendor we book carries its own insurance and provides a certificate before its first day on site. We are on site whenever a vendor is.

Confidentiality. Every team member and contractor signs a written confidentiality agreement before working on any engagement. Nothing about the estate, the property or the family is disclosed without written consent, except as the law requires. Records are held in the estate's own folders, and photographs are shared read-only, only with people recorded on the file.

Marketing. The agreement allows anonymized photographs (no address, no names, no identifiable person, no documents) to be used in our marketing unless you opt out, on the agreement or by written notice at any time. In practice we publish nothing until the property has closed or been cleared, and nothing from a contested matter. The inventory and the record of where things went are never used.

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